MINUTES OF THE CITY OF HOLLADAY
PLANNING COMMISSION MEETING

Tuesday, September 16, 2025
6:00 PM
City Council Chambers
4580 South 2300 East
Holladay, Utah

ATTENDANCE:

Planning Commission Members:
Dennis Roach, Chair
Karianne Prince
Angela Gong
Jill Fonte
Brian Berndt
Patrick Tripeny

City Staff:
Brad Christopherson, City Attorney
Jonathan Teerlink, Community and Economic Development Director

PLANNING COMMISSION TRAINING

Chair Dennis Roach called the Training Session to order at 5:30 p.m. He noted that Commissioner Cunningham was absent. New Commission Member, Patrick Tripeny, introduced himself. He has been in Utah for 30 years and has lived in the City of Holladay for three years. He currently teaches architecture at the University of Utah. He was happy to be a member of the community and serve on the Planning Commission.

City Attorney, Brad Christopherson, presented the training and welcomed questions and comments. Chair Roach reported that Commissioner Gong had process questions during the Planned Unit Development ("PUD") discussion at the last meeting. Mr. Christopherson invited the Commissioners to address the difference between the Planning Commission and the City Council. Commissioner Berndt explained that the Planning Commission advises the City Council on certain issues. Each of the Commissioners brings their individual expertise to the table.

Mr. Christopherson asked the Commissioners to share information about their backgrounds. Commissioner Berndt stated that he has a background in planning. Commissioner Prince is a stay-at-home mother after working for several years and has been involved in the school system with different Community Councils. Chair Roach served as Chair of the Tree Committee for approximately 10 years, where he learned more about City Ordinances. Commissioner Fonte has a background in business, specifically publishing. She also did executive coaching and management consulting. Commissioner Gong worked in public education for 13 years and did policy research. She recently pivoted to public land management and now serves as the Great Salt Lake Program Manager.

Mr. Christopherson confirmed that the Planning Commission reviews applications and makes recommendations to the City Council. He asked how that works in practice, based on the Commissioner's experience and if there is ever frustration about being advisory. Chair Roach

noted that it often depends on the issue. Mr. Christopherson shared an example of a Commissioner who went outside the boundaries and brought some liability to the city that she served. There was an annexation across the street from the home of this Commissioner. It was open space that was pasture land for cows and horses. She loved having unobstructed views of the mountains. On an upcoming meeting agenda, she saw a petition for annexation for the property across the street from her home. This Commissioner created a petition and went door to door identifying herself as a Commissioner. This Commissioner also stated that the city was trying to stop the annexation.

Mr. Christopherson explained that Commissioners are not policy makers or Council Members. If a Council Member created a petition like this, there would not be the same concerns. However, since the Commission is an advisory body, it is not appropriate for a Commissioner to identify themselves as a representative of the City who is in opposition to an item, because Commissioners do not speak for the City. As a body, the Planning Commission speaks to the City Council and on behalf of the Planning Commission. The Commission does not have a political role or a legislative role. The decision to annex or not is a legislative role rather than administrative. The role of the Planning Commission in an annexation situation is as follows:

- The City Council receives an application for annexation. The Council makes a determination that they would either like to:
    - Send it to the Planning Commission for further study; or
    - Determine that there is no interest in the annexation.

In an annexation situation, if the City Council has seen the application and determines that there is a desire for further consideration, it is sent to the Planning Commission. The Commission is then asked to review the petition for annexation. Mr. Christopherson next shared information about a Conservation Subdivision, which is somewhat similar to a PUD. He noted that there are some differences. As an example, if there were 100 acres, it might normally be possible to build 95 homes on the land. In a Conservation Subdivision, it is possible to have one-half-acre lots to cluster development and preserve up to 50% of the annexed area as open space. A Conservation Easement would be placed on that portion of the property, which would continue to allow for the grazing of animals, the raising of crops, etc. It would still have a rural feel but allow for some residential development. He added that there could be some bonus density provided if there was an affordable housing component.

Mr. Christopherson shared additional information about the example scenario. The City's interest in that case was not to remove the rural feel of the community, but to create a buffer next to the sewer ponds. This did not align with the interests of the Commissioner, who did not want to have homes across the street from her property. Mr. Christopherson reminded the Commission that Utah is a property rights State. If someone does not own a property, their ability to control what happens there is limited, even as a Commission Member. Commissioner Prince asked what the outcome of the example scenario was. Mr. Christopherson reported that the Commissioner received clarification about her role on the Planning Commission but she continued to exceed her role. When this situation began, the Commissioner had two years left on her term. There were conversations about potentially removing her from the Planning Commission but the elected officials chose not to do so and instead allowed her term to expire. She was not reappointed. The other Commissioners did not agree with her efforts and recognized the role of the Planning Commission.

Commissioner Prince was reminded of a resident who spoke to the Planning Commission several months back, claiming that the Planning Commission needs to be his advocate. Mr. Christopherson clarified that this was not an accurate statement made by the resident. The State has created statutes that allow for the creation of cities, allow for elections to take place, and allow for the appointment of Commissioners to handle land use and development issues. The City Council establishes policies and codes, so the role of the Planning Commission has limitations. There is a statement read at the beginning of each Regular Meeting stating that the Planning Commission acts on applications that are filed and does not seek out applications.

In the last six months, Mr. Christopherson has assisted several clients in removing conditional uses from their Land Use Tables. This is because some of the clients have been sued. There have been four lawsuits filed over Conditional Use Permits ("CUP"). Commissioner Fonte asked for example scenarios. Mr. Christopherson shared an example where a CUP application came in for a hotel in a relatively rural community. In the Land Use Table, hotels were listed as a conditional use. The developer came in wanting to put a hotel on a 10-acre piece of commercial property. There was a lot of resident opposition. Mr. Christopherson explained that the reasonably anticipated detrimental effects must be addressed. For example, light pollution would be an example of something that might need to be mitigated. In this example scenario, an eight-foot fence was required instead of a six-foot fence so the noise would have a buffer. In addition, there was a landscape buffer that had to be placed on the property. One of the Commissioners was adamant that there needed to be mature trees, but that was cost-prohibitive. As a result, mature trees were not considered to be a reasonable request. What was deemed reasonable was a landscape buffer in front of an eight-foot wall. There also needed to be shielded lights to address the light pollution.

Mr. Christopherson shared additional information about the example scenario. In rural communities where there is a lot of irrigation water and flood irrigation is the norm, seasonal wetlands can develop. In the past, seasonal wetlands have been regulated as waters of the United States because wetlands have been determined to be important. However, these wetlands would not exist without the irrigation. Since in the past, these have been deemed as wetlands, there would be wetlands studies and mitigation. All of this resulted in the resident's frustration with the hotel. While he does understand those feelings, this was zoned commercial.

Commissioner Fonte asked if the example scenario involved an application for a CUP. Mr. Christopherson confirmed this and explained that it was approved with conditions. There is a lawsuit from a handful of Homeowners Associations ("HOA") and residents related to that CUP approval. That lawsuit is pending, but he noted that the property was already zoned commercial. Mr. Christopherson explained that the process is simple for permitted uses, as approval is not needed from the Commission or Council. Commissioner Fonte wanted to understand why a CUP was needed for the hotel. Mr. Christopherson clarified that the Land Use Table listed hotel as a conditional use. If it were a permitted use, the application would not have come to the Commission.

Mr. Christopherson explained that there was an appeal of the CUP approval to the District Court. The District Court Judge now needs to review the record to see if the decision was supported by substantial evidence. Substantial evidence means that a reasonable person could come to the

conclusion that this should be approved. The appeal argues that this was not reasonable because there are wetlands on this property. However, there was a permission letter issued that states these are seasonal wetlands because of irrigation. Once the irrigation stops, these will no longer be wetlands. There was discussion about the example scenario. Mr. Christopherson shared an additional scenario where one side of the street was mostly commercial and the other was mostly residential. Someone wanted to knock down a house and put additional parking on the parcel. The City Council determined that it was not reasonable for the parking to be located there. The developer appealed and argued that it was reasonable, but the court upheld the Council's decision.

Commissioner Berndt mentioned the PUD application that was considered at the last Planning Commission Meeting. There was concern about whether there would be a community benefit. He was confused about the fact that there were only internal benefits proposed as part of the application. Mr. Christopherson explained that it depends on how community is defined. For example, there could be a common area that benefits the residents of that particular development. He shared additional information about the PUD process. In the early 1980s, CUPs were often approved based on whether there was support for the proposal. There was a case that came before the Utah Supreme Court, which stated that CUPs are permitted with conditions related to the reasonably anticipated detrimental effects. That decision changed the ways CUPs were handled.

Community and Economic Development Director, Jonathan Teerlink, explained that Staff provides as much professional support to the Planning Commission and City Council as possible for a list of standards or provisions associated with a permitted use. Every city relies on staff to create a set of standards for how development can be used and implemented on that site. This makes the assumption that the staff is creating the ideal set of standards. Every once in a while, there is a use for it that is not possible to write a set of standards for. It is then possible to hear resident concerns during a Planning Commission Meeting. The standards can then be created and applied specifically to that development. Some examples of situations were shared.

Mr. Christopherson reported that something that came up in the Legislature during the last session was a push from developers to make the General Plan legislative and binding. That would mean the General Plan would no longer be advisory. It is something that will likely be back in the future.

Mr. Christopherson stated that notices are sent out within a certain area when a development application comes in. It lets recipients know that there is a public hearing about a certain application, and input is desired. He asked what expectations it puts on members of the public who have never been through this process before. Commissioner Fonte stated that it would require people to pay attention. Commissioner Prince pointed out that residents could comment. Mr. Christopherson added that it could create an improper perception that if enough residents share comments and speak out, something may not move forward. However, in the case of a CUP, it needs to be approved as long as it is possible to determine reasonable mitigating conditions. When there are more controversial items being considered, there are normally a lot of passionate residents who come out to speak either in favor or in opposition. He does not have a problem with that from a process standpoint, but it can create a certain expectation. The Planning Commission does not always have the authority or ability to make a certain decision. For instance, the Commission could forward a negative recommendation to the City Council, but the Council could still vote to approve. Additional discussions were had about reasonably anticipated detrimental effects.

Mr. Christopherson explained that when someone is upset about a development, similar comments and arguments are normally made. This includes questions about whether a Traffic Study has been conducted. Commissioner Fonte asked if the rationale for a Traffic Study is to determine whether the road will fail as a result of the development. Mr. Christopherson noted that if a development causes the road to fail, the City can require the developer to address the impact of the development. Traffic studies can also look at whether stop signs or other measures are needed.

Mr. Christopherson shared information about the Utah League of Cities and Towns ("ULCT"). He noted that the ULCT does a good job of balancing the interests of cities and towns. Something developers often state is that the approval process takes too long at the city level. The Legislature has now determined that a city only has so much time to review an application. He added that zoning issues are an area where there is some tension. The Legislature wants there to be smaller lots in order for there to be more affordable homes. There are issues when people in the area do not want smaller homes, because it could impact property values. Mr. Christopherson also noted that there are moderate-income housing requirements that have come from the Legislature.

Following one hour of Planning Commission training, the Work Session took place.

WORK SESSION

Chair Roach called the Work Session to order at 6:30 p.m. He reported that there is one Public Hearing item on the agenda, "Royal Holladay Hills; Block C, Lot 3." Mr. Teerlink explained that this is what he would consider Phase III of Block C. It is the third building that is being proposed on this block. It shares the Site Plan of a previous Site Plan that was reviewed by the Commission. The reason that was looked at previously was that there was a desire to purchase the ground underneath that building from the developer. This is the second phase of that. It shares a parking lot and landscaping. The approved plans that were reviewed are included in the Meeting Materials Packet, as well as the construction drawings for the building itself. Notices for this went out last week for properties within 500 feet. He has not received any email comments about this item.

Staff has been able to review the Site Plan based on what was previously approved. Mr. Teerlink explained that the architecture of the building itself is being looked at, specifically how it complies with the Site Development Master Plan ("SDMP"). The chosen materials and styling are similar to what has been approved within the site. The Planning Commission can ask the applicant questions about that. Staff is recommending approval. Chair Roach asked if the architectural styles included in the Meeting Materials Packet are what they will be held to, which was confirmed.

The Planning Commission took a short break before the start of the Regular Meeting.

CONVENE REGULAR MEETING – Public Welcome and Chair Opening Statement.

Chair Roach called the Regular Meeting to order at 6:40 p.m. There is one Public Hearing item on the agenda. All members of the Commission are present with the exception of Commissioner Cunningham. The Opening Statement was not read, as no members of the public were present.

PUBLIC HEARING

1. **"Royal Holladay Hills; Block C, Lot 3"- Preliminary Site Plan – 1900 East Rodeo Walk Drive (R/M-U) Preliminary Review and Consideration of Commercial Development Details as Proposal by Applicant, Steve Peterson. The Commission will**

Review the Site Development and Architectural Details at Lot 3 within Block 'C' of the Holladay Hills Mixed Use Development. The Project Entails a Permitted Use, 3-Story Commercial Building and Associated Site Improvements According to Regulatory Provisions of the Site Development Master Plan (SDMP 2007), Holladay Ordinances §13.10a, §13.65. *File #19-9-19-10*.

Mr. Teerlink presented the Staff Report and stated that the request involves a Preliminary Site Plan for 1900 East Rodeo Walk Drive within the R/M-U Zone. Block C will be considered Phase III of this block. The applicant, Steve Peterson, is proposing a retail development site that shares Site Plan elements with two previous approvals the Planning Commission reviewed. Nothing in the Site Plan has been amended. The footprint of the building was previously seen by the Planning Commission, with Site Plan elements to be shared by all three existing approved buildings.

The Technical Review Committee ("TRC") conducted a review with an analysis included in the Staff Report. The TRC compared what was provided by the applicant to what was previously approved for landscaping, parking, and access. This meeting involves review and consideration of the Preliminary Site Plan to amend Block C to include Lot 3. There will also be a review of the architectural elements in congruence with the SDMP for the Royal Holladay Hills site. Staff reviewed what has been provided on the materials board. There are styling features that are similar to what has been seen on some of the other buildings. It is possible to ask the applicant specific questions about the materials. Mr. Teerlink reported that Staff recommends approval of the architectural elements as well as the amendment to Block C, Lot 3.

Mr. Peterson shared information about the grass on the top level. He explained that those are planter boxes. He believes this will be a positive addition to the Block. There is only one other Lot on Block C, which is leased to another retailer. It is anticipated that it will come before the Planning Commission fairly soon. Chair Roach commented that the modern style ties in with what was seen a few months prior. He asked where the main entryway would be located. Mr. Peterson reported that it will be on Rodeo Walk Drive on the far corner. The location was pointed out for reference. Commissioner Prince asked for information about "ARHAUSE." Mr. Peterson explained that it is similar to Restoration Hardware. There will be a showroom but shipping will not take place from this location, which will result in less impact on the area.

Chair Roach opened the public hearing. There were no comments. The public hearing was closed.

Commissioner Prince praised the design and liked the different elements that have been included. She was comfortable with what had been proposed by the applicant. Commissioner Gong liked what was proposed and found the building to be visually appealing. She noted that there are 66 parking stalls, where 57 are required. She commented that reducing the number of parking stalls to what is required would be preferable. There were no additional Commissioner comments.

Commissioner Prince moved to APPROVE a Preliminary/Final Retail Site Development Plan for Block C, Lot 3, enabling the development of "ARHAUSE," a Retail Use in the R/M-U Zone, located at 1900 East Rodeo Walk Drive, based on the following:

Findings:

1. ***Proposed retail use is a permitted land use of the "Open" Land Use Zone of the SDMP.***

2. ***Access and featured construction elements are found to be acceptable by all divisions of the Technical Review Committee.***

3. ***All roads and related infrastructure are presented as private improvements and do not require City construction and maintenance standards review.***

4. ***All development details and related architectural components comply with the R/M-U Zone and SDMP as a master planned project.***

Commissioner Fonte seconded the motion. Vote on Motion: Commissioner Tripeny-Yes; Commissioner Fonte-Yes; Commissioner Prince-Yes; Commissioner Gong-Yes; Commissioner Berndt-Yes; Chair Roach-Yes. The motion passed unanimously.

ADJOURN

Chair Roach moved to ADJOURN. There was no second. The motion passed with the unanimous consent of the Commission.

The Planning Commission Meeting adjourned at approximately 6:50 p.m.

I hereby certify that the foregoing represents a true, accurate, and complete record of the City of Holladay Planning Commission Meeting held on Tuesday, September 16, 2025.

Teri Forbes

Teri Forbes
T Forbes Group
Minutes Secretary

Minutes Approved: **December 2, 2025**